

6	30-2023-01311869 Sheybani vs. Starbucks Corporation	The “Motion to Compel Plaintiff Sherry Sheybani to Submit to Independent Medical Examinations and Request for Sanctions in the Amount of \$2,400,” filed by Defendant Starbucks Corporation (“Defendant”) on 10/30/24, is GRANTED IN PART. By this Motion, Defendant seeks an order compelling Plaintiff Sherry Sheybani (“Plaintiff”) to submit to four independent medical exams (“IMEs”), including one for a neuropsychological exam. Defendant here has shown good cause for all four IMEs under the circumstances here. A defendant, upon a showing of good cause, may obtain multiple exams of a personal injury plaintiff in addition to an initial exam. (<i>Shapira v. Sup. Court</i> (1990) 224 Cal.App.3d 1249, 1256.) When multiple exams are requested, the trial court is to exercise its discretion as to whether good cause exists for the requested exam(s). (<i>Id.</i> at 1254-1256.) Here, the Motion demonstrates that Plaintiff has asserted claims in this action which involve traumatic brain injury, cognitive impairment, head injury with loss of consciousness and ongoing memory loss, concentration issues, neck pain, lower back pain, blurry vision, and anxiety. (ROA 55, Ex. I.) Defendant has also made an adequate showing as to why all four IMEs are needed to address different aspects of Plaintiff’s claims. (ROA 51, pp. 6-7.) Good cause is thus shown here. Plaintiff argues in response that not all of the proposed IMEs should be allowed as they “substantially overlap in scope and are redundant” (Opp p. 2) and are “not justified by individualized need” (Doulatsahi Decl., ¶ 6). But she has failed entirely to show here why that is so, and does not dispute that she has made the substantial and divergent injury claims as identified in the Motion. Plaintiff also does not dispute here that <u>no</u> objections were served for any of the IMEs at issue when they were noticed. The Court is thus inclined to grant the Motion. However, as reflected in the Opposition and the Reply, Plaintiff has evidently since submitted to one of those IMEs, so that only 3 remain at issue. But while Plaintiff claims to have now been seen by neurologist Dr. Ludwig (ROA 77, Doulatsahi Decl., ¶ 3), the Reply says she was seen only by neurosurgeon Dr. Lederhaus (ROA 83, Motazedi Decl., ¶ 5; Reply p. 2). So what
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		remains at issue are the requested exams with neuropsychologist Dr. Thaler and neuro-opthamologist Dr. Shabo, and one more [either neurosurgeon Dr. Lederhaus, or neurologist Dr. Ludwig]. Counsel will need to address at the time of the hearing which exam has occurred. The Court will then GRANT the Motion as to the other three IMEs. Counsel should be prepared to set specific dates for those exams at the time of the hearing. Defendant's request for sanctions against Plaintiff is also GRANTED but only as to the \$1,200 no-show fee which plaintiff concedes was incurred because she "inadvertently missed the original appointment." (ROA 77, Doulatshahi Decl., ¶ 3). This no-show fee should not be borne by the faultless defendant. The request for further sanctions is denied because defendant was required to seek court approval before requesting more than one IME (CCP section 2032.310(a)), and thus this motion could well have been necessary in any case and plaintiff was not required to accede to three additional IME's just because defendant requested them. Although the court concurs with defendant that plaintiff's counsel should have done a better job conferring with defense counsel, the court finds that it is not just to impose additional sanctions on the plaintiff (who must undergo four separate IME's) because defendant, which did not have a court order, sought to engage in discovery that required one. Counsel for Defendant is to give notice of this ruling.
7	30-2023-01319862 Lopez vs. Castonguay	Before the court is the continued hearing on two discovery motions filed by plaintiff Tony Lopez against defendant New Prime, Inc. The first is a motion to compel a further production of documents and the second is a motion to compel further answers to form interrogatories. Following the 2/10/25 hearing, the parties each submitted supplemental briefs. After consideration of the supplemental briefs, the first motion is DENIED and the second motion is GRANTED. Also on calendar is a Motion to Reopen Discovery filed by defendants New Prime, Inc. and Christopher Canstonguay. That motion is MOOT in light of the court's 3/19/25 Minute Order and is therefore DENIED. <u>I. MOTION TO COMPEL PRODUCTION</u>